

Court No. - 2

Case :- WRIT - C No. - 5667 of 2024

Petitioner :- M/S Shree Ganpati Electricals , Lko. Thru. Proprietor Pradeep Kumar Sharma

Respondent :- Madhyanchal Vidyut Vitran Nigam Ltd. Lko. Thru. Managing Director And Others

Counsel for Petitioner :- Anil Kumar Tiwari,Ujjawal Tewari

Counsel for Respondent :- Aprajita Bansal

Hon'ble Alok Mathur,J.

Hon'ble Arun Kumar Singh Deshwal,J.

1. Heard Sri Anil Kumar Tiwari, learned counsel for the petitioner as well as Sri Karan Agarwal, learned counsel holding brief of Ms Aprajita Bansal, learned counsel for respondent nos.1, 2 and 3.

2. It has been submitted by learned counsel for the petitioner that the petitioner has taken a shop at S1-1396, Suraksha Enclave, Saheed Path, DE Lotus Skill Centre, Eldeco 2, Lucknow for running a shop dealing in electricity goods and had also applied for electricity connection with the respondents. The said application has been rejected on 03.06.2024 on the ground that there are electricity dues on the said premises and in light of the provisions contained in Clause 4.3 and 4.4 of Electricity Supply Code, 2005, electricity connection cannot be granted to the petitioner. Petitioner submits that in the said premises i.e. S1-1396, Suraksha Enclave, Saheed Path, DE Lotus Skill Centre, Eldeco 2, Lucknow, there are three shops, two shops are in tenancy of other persons, who have a separate electricity connection, bearing A/c Nos.5443541132 and 8690847573. It is stated that both these electricity connections are running, while the petitioner has taken the third shop which was previously vacant and a fresh connection has been sought by him. He submits that even if there are dues on the other two shops, it is open for the respondents to recover the outstanding amount rather than to refuse grant of electricity connection merely on the account of the fact that the remaining two shop keepers have not paid the outstanding amount of electricity dues.

3. Learned counsel for the respondents has produced a copy of the bill

on A/c no.8690847573 for an amount of Rs.2,68,659/- dated 27.02.2021, while the notice itself records that the bill with regard to the other shop has already been paid.

4. From the aforesaid submission, it is clear that though the shop in premises which has been constructed is S1-1396, Suraksha Enclave, Saheed Path, DE Lotus Skill Centre, Eldeco 2, Lucknow but the three shops are independent and separate and separate electricity connections have already been provided to two of the three shops.

5. *Prima facie*, it seems that the premise of the petitioner is liable to be considered as a separate premise for the purpose of grant of electricity connection.

6. Be that as it may, let a counter affidavit in this regard be filed by the respondents, within three weeks. Petitioner shall have two weeks time thereafter to file rejoinder affidavit.

7. As an interim measure, it is provided that on an application being made by the petitioner within next two working days, the respondent no.2 shall provide a temporary electricity connection to the petitioner, within 24 hours, as per Clause 4.10 of the Electricity Supply Code, 2005, in accordance with law.

8. List on 08.08.2024.

Order Date :- 28.6.2024

S.Chaurasia

(Arun Kumar Singh Deshwal, J.) (Alok Mathur, J.)